

Rajendra Kumar Agarwal v. State of U.P.

Allahabad High Court · Division Bench · 3 March 2016 · WRIT - C No. 69816 of 2015 · **Writ disposed; petitioner relegated to appeal on depositing Rs. 2 lakh.**

HEADNOTE

A demand imposing a theft penalty of Rs. 3,31,957/-, challenged as lacking a final assessment and statutory compliance, was not interfered with in writ jurisdiction because disputed questions of fact were involved. The High Court disposed of the petition, granting fifteen days to file an appeal, directing the appellate authority to decide it in accordance with law within three months, and requiring a deposit of Rs. 2,00,000/-, with the balance subject to the appeal.

FACTUAL SUMMARY

The Executive Engineer, Electricity Distribution Division-II, Firozabad, issued a demand dated 21 November 2015 assessing alleged electricity theft and imposing a penalty of Rs. 3,31,957/- on Rajendra Kumar Agarwal. He contended that no final assessment had been passed and that the demand lacked basis and statutory compliance. He sought quashing of the demand, an enquiry by the Committee under Clause 8.0 of the U.P. Electricity Supply Code, 2005, and restraint against disconnection and recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.0(5)

theft penalty — writ jurisdiction and statutory appeal

HOLDING

A writ challenging a theft-assessment demand and penalty will not be entertained where disputed questions of fact are involved. The consumer was given fifteen days to file an appeal; the appellate authority was directed to dispose of it in accordance with law within three months; deposit of Rs. 2,00,000/- was required, with the remaining amount subject to the result of the appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE THEFT ASSESSMENT, DEMAND NOTICE DATED 21.11.2015, AND PENALTY OF RS. 3,31,957/-, INCLUDING COMPLIANCE WITH THE ELECTRICITY ACT AND CLAUSE 8.0 OF THE SUPPLY CODE

Declined on disputed questions of fact; relegated to the appellate authority ¶ 1